

statement with an update on the arbitration at least seven calendar days in advance of the hearing.

If either Party challenges the tentative ruling on Line 14, a Further Case Management Conference will be held.

2. 9:00 AM CASE NUMBER: C24-02228
CASE NAME: ZAHRA SADAT HENDI VS. ZBIGNIEW KOSTRZEWSKI
ISSUE CONFERENCE WITH SETTLEMENT MENTOR
FILED BY:

TENTATIVE RULING:

Parties to appear for settlement conference.

3. 10:00 AM CASE NUMBER: C25-01983
CASE NAME: KURT VOSS VS. GREGORY GOMES
HEARING ON ORDER TO SHOW CAUSE IN RE: CONTEMPT OF PREVIOUS TRO AND PRELIMINARY INJUNCTION
FILED BY:

TENTATIVE RULING:

This matter is before the Court on an Order to Show Cause to Defendant Gregory Gomes regarding alleged violations of the Court's Temporary Restraining Order (dated July 17, 2025) and Preliminary Injunction (dated October 3, 2025). On November 20, 2025, this Court issued an Order Granting Plaintiffs' Ex Parte Application for Issuance of Order to Show Cause re: Contempt. That order set the hearing May 7, 2026 and specifically identified that a written response was due nine court days before the hearing and a reply five days before the hearing.

On February 26, 2026, the Court granted a Petition to Compel Arbitration. The Court received no documents relating to the Order to Show Cause until April 29, 2026, at which point Defendant filed a "Statement Regarding Ex Parte Hearing on Order to Show Cause re Contempt; Order Compelling A[r]bitration and Staying Action." In that filing, counsel for Defendant stated that he believed the instant hearing was vacated as a result of the arbitration order. He stated that, if the hearing is to continue, "justice and due process require that the [hearing] be continued fifteen (15) days to permit Defendant to file a substantive opposition." Defendant implicitly argues that the burden was on Plaintiff to show that the "ex parte proceeding is independent from the arbitration, or that the stay is otherwise inapplicable." That is not so. The Court set a contempt proceeding, and Defendant apparently failed to check the docket to verify the assumption that it would be vacated. As Plaintiff properly identifies, the issue the Court is addressing in this hearing is conduct outside of the arbitration. It is therefore properly within the Court's jurisdiction to address compliance. (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1206, quoting *LaPrade v. Kidder Peabody & Co.* (D.C. Cir. 1998) 330 U.S. App.D.C. 386 ("The procedural predicate for the trial court's award of section 128.7 sanctions was not conduct that occurred in the arbitration proceeding. . . . Therefore, the trial court's 'jurisdiction' to entertain defendants' motion for sanctions, like its jurisdiction to entertain McCluskey's amended motion to lift the stay, 'derived from the original ... suit, which was only stayed